

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, MAY 21, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**WELLS FARGO BANK, N.A. v. ANDREW CRONIS
Case No. CL24-08776**

Motion to Vacate Dismissal Under CCP § 664.6 and Enter Judgment Pursuant to Stipulation

TENTATIVE RULING:

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Defendant never appeared in this action until an “appearance” via a stipulation filed by Plaintiff and for which Plaintiff paid the first appearance fee. The stipulation contains no information regarding Defendant’s contact information including telephone, email or address.

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].) Defendant never filed a responsive pleading in this action identifying an address of record. The court is not satisfied that the mailing address Plaintiff used for service of notice of motion provides notice and/or satisfies due process. This is especially true given the address in Fairfield used in the proof of service of summons and the address now used in the proof of service for mailing showing Westlake Village.

The motion for entry of judgment is DENIED WITHOUT PREJUDICE.

JPMORGAN CHASE BANK, N.A. v. MELANIE RIVERA-HOLM
Case No. CL25-04905

Motion for Entry of Judgment

TENTATIVE RULING

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Defendant never appeared in this action until an “appearance” via a stipulation filed by Plaintiff and for which Plaintiff paid the first appearance fee. The stipulation contains no information regarding Defendant’s contact information including telephone, email or address.

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].) Defendant never filed a responsive pleading in this action identifying an address of record. The court is not satisfied that the mailing address Plaintiff used for service of notice of motion provides notice and/or satisfies due process.

The motion for entry of judgment is DENIED WITHOUT PREJUDICE.

CHAVEZ v. RIGHT NOW AIR
Case No. CU24-02605

Motion to Compel Production of Unredacted Medical Records

TENTATIVE RULING

Parties to appear.

Defendant’s unopposed motion seeking compliance with the subpoena served on Winters HealthCare Behavioral Health is GRANTED IN PART. Winters Healthcare Behavioral Health is ordered to produce plaintiff’s records from January 2, 2019, (five years prior to the incident) to the present.

It appears that the parties agreed to use a “first look” process and that Winters Healthcare Behavioral Health has actually produced the documents subpoenaed to Plaintiff’s counsel as previously agreed. Defendant contends that Plaintiff’s counsel heavily redacted or omitted pages during this “first look” process such that the materials produced lacked substance and provided a privilege log identifying a right to privacy as

a basis for not producing a wide range of medical records. Since then, Plaintiff's counsel has withdrawn from the case on April 1, 2026.

The order granting attorney's motion to withdraw includes notice to plaintiff of the motion to compel set for May 21, 2026 at 9:01 in Department 8.

By placing his physical and mental conditions at issue, Plaintiff has engaged in a limited waiver of his right to assert a right to privacy, the physician-patient privilege and the psychotherapist-patient privilege regarding discovery of evidence reasonably related to those claims. (Evid. Code, §§ 996, 1016; see also *Britt v. Superior Court* (1978) 20 Cal.3d 844,849; *In re Lifschutz* (1970) 2 Cal.3d 415, 435.) Plaintiff asserts disability discrimination by Defendant, his former employer. Plaintiff does not claim garden-variety emotional distress, but asserts that as a result of his claims against Defendant he has experienced stress, anxiety and depression for which he is seeking treatment.

Defendant is entitled to discovery related to Plaintiff's physical and mental condition and damages claims. However, limiting the scope of discovery from January 2, 2019 to present, is a reasonable limitation to ensure the request is not overbroad and unnecessarily invasive. The court does not find identification or financial numbers used by healthcare to have any extraordinary right to privacy. Notably, the parties continue to have a stipulated protective order in place.

Plaintiff is ordered to produce unredacted documents responsive to this order in 15 calendar days.

Given counsel's withdrawal, the court is concerned that the original of the documents produced may no longer be available or accessible or identifiable to Plaintiff representing himself pro per. To avoid multiple discovery motions and further delay, if this circumstance arises, the court authorizes defense counsel to re-subpoena the records from Winters Healthcare Behavioral Health and to have responsive records produced directly to defense counsel. No further notice to consumer is required and any prior objections are preserved. This order is sufficient to compel the further release.

Plaintiff and/or Winters HealthCare Behavioral Health shall produce all records responsive to the subpoena from defendant RIGHT NOW AIR from January 2, 2019, to the present without redaction.

The court confirms the June 4, 2026 case management conference at 9:00 a.m. in Department 8. Parties may appear in person or via Zoom. Case management conference statements using Judicial Council Form CM-110 shall be filed 15 calendar days prior to the hearing.

The court also confirms the hearing on Plaintiff's demurrer to the answer on June 4, 2026 at 9:00 a.m. Parties are reminded to check the court's tentative ruling system on June 3, 2026 after 2:00 p.m. and to notify the court if oral argument on the tentative ruling is requested.

MARK BAKER v. GOGRI CORPORATION et al.
Case No. CU25-06372

Motion for Preliminary Injunction

TENTATIVE RULING

Plaintiff MARK BAKER moves for a preliminary injunction against Defendant LIVEVIEW TECHNOLOGIES, INC. (“LVT”) ordering LVT to disable the blue LED lights on LVT’s security systems in place across Yolo, Sacramento, and Solano Counties.

Plaintiff’s motion for preliminary injunction is DENIED.

A trial court may grant a preliminary injunction upon a showing that (1) the party seeking the injunction is likely to prevail on the merits at trial, and (2) interim harm to that party if an injunction is denied is greater than interim harm the opposing party is likely to suffer if the injunction is issued. (*Integrated Dynamic Solutions Inc. v. VitaVet Labs, Inc.* (2016) 6 Cal.App.5th 1178, 1183.) A court has power to issue a preliminary injunction that mandates an affirmative act that changes the status quo, but should only do so in extreme cases where the right to the relief is clearly established. (*Ibid.*)

Plaintiff’s motion does not demonstrate that injunctive relief would be appropriate. Code of Civil Procedure section 527, subdivision (a) permits the issuance of a preliminary injunction at any time before judgment if a verified complaint or affidavits show that sufficient ground for injunctive relief exists. To obtain a preliminary injunction a plaintiff must present admissible evidence of the irreparable injury or interim harm he will suffer if an injunction is not issued. (*Iloh v. Regents of University of California* (2023) 87 Cal.App.5th 513, 522.) A preliminary injunction is improper where harm may be fully compensated by damages. (*Tahoe Keys Property Owners’ Assn. v. State Water Resources Control Board* (1994) 23 Cal.App.4th 1459, 1471.)

Plaintiff presents insufficient evidence of irreparable harm that requires immediate court intervention. Plaintiff states that LVT’s blue LED lights cause harm to persons with autism and/or photophobia but other than his own personal experience fails to present any qualified expert opinion to support his contention. As a layperson, these opinions are outside the scope of common knowledge and lack foundation. Presenting purported “evidence” in the form of summaries of other unauthenticated treatises or studies does not cure this defect and is inadmissible hearsay.

As to Plaintiff’s individual harm, he admits that the blue lights are no longer present at the GOLDEN HILLS location he frequents but contends that they continue to be present at other locations throughout Solano, Yolo and Sacramento counties. Plaintiff also does not demonstrate that his asserted harms are not fairly compensable with damages. He states that his harms include “agitation, fear, and panic,” which are all things the law routinely compensates via damages in emotional distress cases (among others). (Motion at ¶ 4;

see generally *Martinez v. Rite Aid Corp.* (2021) 63 Cal.App.5th 958 [award of damages for emotional distress].)

Overall, considering the low likelihood that Plaintiff will prevail at trial based on the absence of qualified, admissible evidence; the absence of immediate and ongoing harm to Plaintiff and the potential Plaintiff may be compensated by monetary damages in comparison to the potential harm to Defendant, the balance of harms favors LVT and weighs against issuance of a preliminary injunction.

Because the court finds that Plaintiff has failed to meet his burden to establish an entitlement to a preliminary injunction, the court does not reach the balance of the argument as to whether the relief requested can be nationwide or is now moot because the blue lights associated to the security system are no longer used at GOLDEN HILLS.

Based on the above, Plaintiff's motion for a preliminary injunction is DENIED.

TD BANK, N.A. v. ROYCE S. GOREE
Case No. CU25-08305

Plaintiff's Motion to Have Admissions Deemed Admitted and Request for Sanctions

TENTATIVE RULING:

The motion of TD BANK N.A. to deem matters admitted is DENIED WITHOUT PREJUDICE.

Plaintiff's notice of motion gives erroneous information regarding the time and date of hearing. Notably, the motion advises Defendant to check for a tentative ruling on "6-24-26." Further, the proof of service does not appear to have Defendant's correct mailing address as it fails to identify the proper suite number. Defendant's original answer did not have a suite number, but his amended answer does. This error is ascribed to Defendant and not to Plaintiff, but should be ruled out through meet and confer as a basis for the alleged failure of Defendant to respond before a future motion is filed.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002